

File No.: EXP202210658

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Ms. A.A.A. (*hereinafter, the complainant), on October 6, 2022, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against the entity PRODALVIN, S.L., with CIF B04337895 (hereinafter, the defendant), for the installation of a video surveillance system located at CALLE ***ADDRESS.1 (Portal D of the ***BUILDING.1) ***LOCALITY ALMERÍA, with indications of a possible violation of the provisions of personal data protection regulations.

The reasons supporting the complaint are as follows:

The complainant states that the defendant is responsible for a video surveillance system installed in a building with several entrances, indicating that the cameras are not properly signposted as the sign for the monitored area is blank, lacking information about the data controller and the address to exercise rights.

It also points out that one of the cameras installed inside the entrance is positioned in such a way that it is capable of capturing images of the public road that runs alongside the entrance where the camera is located.

Images of the location of one of the cameras and the monitored area sign are provided.

The documents submitted are: - Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), this complaint was forwarded to the defendant for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on 09/12/2023, as stated in the certificate in the file.

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Although the notification was validly carried out by electronic means, being considered completed in accordance with the provisions of Article 41.5 of the LPACAP, for informational purposes, a copy was sent by postal mail which was returned by the Postal Service with the indication of "incorrect address," despite being the address that appears in the Mercantile Registry as the registered office of the defendant.

Since the notification was rejected, no response has been received to this transfer document.

THIRD: On January 6, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: On March 16, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the defendant for the alleged infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the defendant.

Article 64.2.f) of the LPACAP - a provision of which the defendant was informed in the initiation

agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the infringement of the GDPR attributed to the defendant, and the sanction that could be imposed.

Therefore, considering that the defendant has not made any allegations regarding the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

SIXTH: Upon consulting the database of this Agency, it is recorded, after the two failed notification attempts, that the Initiation Agreement was published in the B.O.E dated ***DATE.1, indicating the associated number PS/00068/2023.

In view of all that has transpired, the Spanish Agency for Data Protection considers the following facts to be proven in this procedure,

PROVEN FACTS

First. The facts arise from the complaint dated 06/10/22 through which the presence of a camera system without proper signage is reported.

Second. The entity Prodalvin S.L. with CIF B04337895 is identified as the main responsible party.

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Third. It is established that the informational signs do not indicate the data controller, the effective address to exercise rights under the current regulations, or the purpose of the processing.

Fourth. It is established that there is a system of cameras in the building, which captures the access area to it.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (image of natural persons) carried out through the reported video surveillance system complies with the provisions established in the GDPR.

III

In this case, the complaint dated 06/10/22 is examined, which states the following:

"presence of cameras whose signs are empty in their essential content not indicating the data controller (...)"

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From the initial evidence provided, it has been confirmed that there are informational sign(s) that are not compliant with the current data protection regulations.

To comply with current regulations, the AEPD published the mandatory sign that must be placed in collective spaces subject to video surveillance.

This agency, in a related report, stipulates that it is not necessary for the signs to be placed directly below the cameras. It is sufficient to place them in a visible location that includes both open and closed spaces where the video camera circuit is operational.

Article 22, section 4 of the LOPDGDD states: "The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. An internet connection code or address to this information may also be included in the informative device." The aforementioned facts imply a violation of the content of Article 13 of the GDPR, as there are no informational sign(s) with an effective address to which one could direct or indicate, if applicable, the main data controller.

Article 13 of the GDPR "Information to be provided when personal data are obtained from the data subject"

1. When personal data relating to a data subject are obtained from that data subject, the data controller shall provide the data subject with all the information indicated below at the time the data are obtained: a) the identity and contact details of the controller and, where applicable, of the controller's representative; b) the contact details of the data protection officer, where applicable; c) the purposes of the processing for which the personal data are intended and the legal basis for the processing (...).

Article 72, section 1 of the LOPDGDD (LO 3/2018, December 5) regarding the statute of limitations for very serious infringements states that "they shall prescribe after three years" and particularly the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law.

IV

In accordance with the evidence provided in this sanctioning procedure, it is considered that the facts presented violate the provisions of Article 13 of the GDPR, constituting an infringement classified under Article 83.5 of the GDPR, which states the following:

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"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

b) the rights of the data subjects pursuant to Articles 12 to 22; (...)"

V

The text of the resolution establishes what the committed violations were and the facts that led to the breach of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully understands their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

It is noted that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative violation in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

On the website of this Agency www.aepd.es, in the Video Surveillance Guide section, the requirements that informative signs must meet, which must inform of the presence of video surveillance cameras, are outlined.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the gradation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on the entity PRODALVIN, S.L., with NIF B04337895, for a violation of Article 13 of the GDPR, classified under Article 83.5 b) of the GDPR, a fine of €500.00 (Five hundred euros).

SECOND: TO ORDER PRODALVIN, S.L., with NIF B04337895, that pursuant to Article 58.2.d) of the GDPR, within 15 working days, prove that it has complied with the following measure:

- Installation of informative signage adapted to current regulations, indicating the data controller, how to exercise the rights, and the purpose of the processing, providing a photograph with the date and time of the installed signs.

THIRD: TO NOTIFY this resolution to the entity PRODALVIN, S.L.

FOURTH: This resolution shall be executable once the period for filing the optional appeal for reconsideration (one month from the day following the notification) has expired.

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of this resolution) without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period. Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested

party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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